

TEZPUR UNIVERSITY
DEPARTMENT OF COMPUTER SCIENCE AND ENGINEERING
Mid-Term Examination
Course Code: - CSMT 532 IPR (Intellectual Property Rights)

Date ~~18~~ 10/2025

Marks: 30

Time: 90 mins

Question. 1

1.5 X 10 = 15

1. What does Intellectual Property (IP) refer to?

- A. Tangible assets like land and buildings
- B. Creations of the mind, such as inventions and artistic works
- C. Government-owned innovations
- D. Historical artifacts

2. What is the main purpose of Intellectual Property law?

- A. To restrict creativity
- B. To promote innovation and creativity through legal protection
- C. To make information confidential
- D. To nationalize all inventions

3. Which of the following works is not covered under copyright in India?

- A. Musical works
- B. Dramatic works
- C. Inventions
- D. Sound recordings

4. What is the term of copyright for literary, dramatic, musical, or artistic works in India?

- A. Lifetime of author plus 20 years
- B. Lifetime of author plus 60 years
- C. 60 years from publication
- D. 100 years from creation

5. What is the nature of copyright in India?

- A. It requires compulsory registration
- B. It arises automatically upon creation of the work
- C. It is granted only after examination
- D. It must be notarized

6. Why is registration of copyright advisable even though it's not mandatory?

- A. It gives automatic protection
- B. It provides evidence of ownership and exclusive rights
- C. It makes the work public domain
- D. It shortens the waiting period for publication

7. What is a trademark?

- A. A legal right to copy someone's work
- B. A mark that distinguishes one's product or service from another
- C. A form of patent protection for inventions
- D. A certification of product quality

8. Which of the following is an example of a word mark?

- A. The Nike "Swoosh"
- B. "Coca-Cola"
- C. The golden arches of McDonald's
- D. The roar of a lion in MGM films

9. Which of the following steps comes first in the trademark registration process?

- A. Filing the application
- B. Publication and opposition
- C. Trademark search
- D. Renewal

10. How long must businesses typically renew their trademark to maintain protection?

- A. Every 2 years
- B. Every 5–10 years
- C. Every 15 years
- D. Every 20 years

Q.2. This question contains three sub-questions (i, ii, iii). Attempt any one question from each sub-question.

5 X 3 = 15

- i)
 - a) Explain the different types of Intellectual Property rights. Describe patents, copyrights, trademarks, industrial designs, geographical indications, and trade secrets, highlighting how each protects specific forms of creativity or innovation.
 - b) Discuss the importance of Intellectual Property for businesses, universities, and indigenous communities. Explain how IP rights benefit various sectors by promoting competitiveness, knowledge transfer, and protection of traditional knowledge.
- ii)
 - a) Define a trademark and explain its significance in distinguishing goods and services. Discuss how trademarks help businesses establish brand identity, indicate quality and origin, and prevent consumer confusion.
 - b) Explain the process of trademark registration. Outline and elaborate on the steps involved from trademark search to filing, examination, publication, registration, and renewal.
- iii)
 - a) Explain the objectives of copyright law in India. Discuss how the law balances the rights of creators and the public, mentioning the roles of protection of creators, public access, fair use, and adaptation to technological change.
 - b) Describe the nature and essential features of copyright protection in India. Include details about automatic protection, exclusive rights, moral rights, transferability, and the limitations of copyright.

TEZPUR UNIVERSITY
DEPARTMENT OF COMPUTER SCIENCE AND ENGINEERING
End-Term Examination

Course Code: - CSMT 532 IPR (Intellectual Property Rights)

Time: 120 mins

Marks: 50

2 X 5 = 10

Question. 1

I. A company combines two previously published designs. The combination creates a visually new appearance. Under the Designs Act, 2000, how will this be treated?

- A. The design will be rejected because the components are already published
- B. The design can be registered because the visual result is new
- C. The design automatically becomes a patentable invention
- D. Registration depends on whether the combination improves product function

II. What is the most significant factor in determining whether two designs are substantially similar?

- A. The designer's intention
- B. The article's functional performance
- C. The visual impression on an instructed eye
- D. The cost of producing each design

III. Which situation MOST strongly supports granting a compulsory license?

- A. The invention is not novel
- B. The patented drug is available, but at a very high price
- C. The invention is not worked in any country
- D. The inventor refuses to assign the patent to a competitor

IV. A competitor publicly used the invention in India before the priority date. After patent is granted, an "interested person" files a post-grant opposition.

Which ground is strongest?

- A. Insufficient disclosure
- B. Invention obvious
- C. Prior public use in India
- D. Wrongly obtained

5. Which factor is *most essential* to determine whether a product qualifies for GI protection?

- A. The product is manufactured by a well-known company
- B. The product originates from a region and its qualities are linked to that region
- C. The product has high commercial value
- D. The product has been exported internationally

Question2.

10 X 3=30

- I. Describe the meaning of "design" under the Designs Act, 2000. Explain the essential requirements for the registration of a design under this Act 2000. Illustrate your answer with examples.
- II. The Indian Patents Act adopts a strict approach to non-patentable inventions under Sections 3 and 4. Critically evaluate this approach with examples such as mere discoveries, admixtures, and methods of agriculture
- III. Critically examine the concept of Geographical Indications (GIs) in Intellectual Property Rights. How do geographical, natural, and human factors collectively contribute to the uniqueness of GI-protected products?

Question 3. Short Notes (Choose Any Two)

5X2=10

- i) Compulsory Licence of Patent ii) Pre-grant and Post-grant Opposition of Patents iii) Importance of Registration and Reasons for Cancellation of Registration of Design iv) Process of Registration of Geographical Indication (GI)